

Nepal Bar Council Act, 1993

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Nepal Legal Practitioners' Council Act, 2050 (1993)

Royal Seal and Date of Publication

2050.8.7

Amending Acts

1. Act to Amend Some Nepal Acts Relating to Court Management and Judicial Administration, 2058 (2001)
2059.5.27

Certification and Date of Publication

2. Act to Amend Some Nepal Acts, 2064 (2007) 2064.5.9

3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.1.7

4. Nepal Legal Practitioners' Council (First Amendment) Act, 2068 (2011) 2068.8.25

5. Act to Amend Some Nepal Acts, 2075 (2018) 2075.11.19

Act No. 26 of the year 2050 (1993)

An Act Made to Establish and Make Provision for the Nepal Legal Practitioners' Council

Preamble: Whereas, it is expedient to establish and make provision for a Nepal Legal Practitioners' Council in order to protect the rights and interests of legal practitioners and to operate more responsible service towards society,

Now, therefore, Parliament has enacted this Act in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Nepal Legal Practitioners' Council Act, 2050 (1993)."

(2) Sections 1 and 4 of this Act shall come into force immediately and the other sections shall come into force on the date appointed by His Majesty's Government by a notification published in the Nepal Gazette. The sections of this Act remaining to be enforced have been appointed to come into force in the State of Nepal from the date of 2051.4.27. (N.G. dated 2051.4.23)

2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Council" means the Nepal Legal Practitioners' Council established under this Act.

(b) "Chairperson" means the Chairperson of the Council.

(c) "Member" means a member of the Council.

(d) "Secretary" means the Secretary of the Council.

(e) "Legal Practitioner" means a Senior Advocate and an Advocate, and that word shall also denote other legal practitioners provided for in this Act.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter 2 Establishment and Formation of the Legal Practitioners' Council

3. Establishment of the Council: (1) There shall be established a Council called the Nepal Legal Practitioners' Council.

(2) The Council shall be a self-governing and organized body corporate with perpetual succession.

(3) The Council shall have its own separate seal.

(4) The Council may acquire, hold, sell, or otherwise dispose of movable and immovable property like a person.

(5) The Council may sue and be sued in its own name like a person.

(6) The office of the Council shall be located in the Kathmandu Valley. 4.

Formation of the Council: (1) The Nepal Legal Practitioners' Council shall consist of the following Members:-

(a) The Attorney General of Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009)., (b) The President of the Nepal Bar Association, (c) The Registrar of the Supreme Court, (d) The Dean of the Faculty of Law, Tribhuvan University, (e) Amended by the Act to Amend Some Nepal Acts, 2075 (2018).Senior Advocates or Advocates elected by Senior Advocates and Advocates practicing law in each Province of Nepal, and (f) Two Senior Advocates or Advocates nominated by the Nepal Bar Association. (2) The Attorney General of Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). shall be the Chairperson of the Council and the President of the Nepal Bar Association shall be the Vice-Chairperson of the Council. (3) The term of office of the Members elected under clause (e) of sub-section (1) shall be five years and the term of office of the Members nominated under clause (f) shall be two years. (4) Only those legal practitioners who have obtained a certificate as a legal practitioner and have practiced law for at least ten years shall be eligible to be Members under clauses (e) and (f) of sub-section (1). (5) Until Members under clause (e) of sub-section (1) are elected, the Nepal Bar Association may Amended by the Act to Amend Some Nepal Acts, 2075 (2018).nominate one legal practitioner from each concerned Development Region, making a total of seven legal practitioners, as Members for a maximum period of one year. (6) In the absence of the Chairperson, the Vice-Chairperson shall perform the functions of the Chairperson. 5. Vacancy and Filling of Seat: (1) If a vacancy occurs due to the death of any Member elected under clause (e) of sub-section (1) of section 4, or resignation by any Member, or upon any Member becoming disqualified to remain a legal practitioner according to the provisions of this Act, and if the remaining term of office of such Member is less than one year, the Council shall appoint another legal practitioner from the concerned area as Member; and if the remaining term is more than one year, such seat shall be filled by election. (2) If a vacancy occurs due to the death of any Member nominated under clause (f) of sub-section (1) of section 4, or resignation by any Member, or upon any Member becoming disqualified to remain a legal practitioner according to the provisions of this Act, the Nepal Bar Association shall nominate another legal practitioner as Member for the remaining term of office of such Member. 6.

Member not to Participate: (1) If any Member has any interest in any contract made by the Council, or if any proceedings are initiated by the Council against any Member, such Member shall not participate in or vote on the discussion relating to such contract or proceedings in any meeting of the Council or any committee of the Council. (2) If any person from the immediate family of a Member is appearing as an examinee in the legal practitioner's examination, the concerned Member shall not sit in the committee relating to such examination. (3) If any Member does any act against this Act, the Council shall take action as prescribed. 7. Meeting of the Council: (1) The Secretary of the Council shall fix the date, time and place of the meeting as directed by the Chairperson and convene the meeting of the Council. If at least four Members make a written request to the Chairperson to convene a meeting of the Council, the Chairperson shall direct the Secretary to convene the meeting. (2) If more than fifty percent of the Members are present, it shall be deemed that the quorum is constituted for the meeting of the Council. (3) The meeting of the Council shall be presided over by the Chairperson or, in his/her absence, by the Vice-Chairperson, and in the absence of both, by the senior-most Member among the Members present in the meeting in terms of age. (4) The opinion of the majority in the meeting of the Council shall be deemed to be the decision of the Council, and in case of a tie, the person presiding over the meeting shall cast the deciding vote. (5) The Secretary of the Council shall certify and keep the decision of the meeting. (6) Other procedures relating to the meeting of the Council may be determined by the Council itself. 8.

Functions, Duties and Powers of the Council: (1) The functions, duties and powers of the Council shall be as follows: (a) To conduct examinations for those entering the legal profession. (b) To make arrangements for the procedure relating to registration of legal practitioners. (c) To register a qualified person as a legal practitioner. (d) To monitor whether legal practitioners act in accordance with the prescribed code of professional conduct for legal practitioners. (e) To receive complaints relating to acts done by legal practitioners against professional conduct and to forward them to the Disciplinary Committee for action. (f) To prescribe the procedure to be followed by the Disciplinary Committee and other committees. (g) To initiate cases against those acting against the provisions of this Act. (h) To protect the honor, prestige, security, rights, interests and facilities of legal practitioners. (i) To recommend suitable academic standards for the legal profession by consulting with the university to encourage quality legal education. (j) To appoint necessary employees for the Council and to make provisions for their remuneration and other facilities. (k) To make arrangements for necessary training and coaching to give practical experience of legal practice to legal practitioners and to make the legal profession dignified. (l) To make arrangements for studies, discussions, meetings, seminars, lectures, etc. to enhance the interest of legal practitioners and to make arrangements for necessary publications. (m) To manage the fund of the Council. (n) To perform other functions determined by this Act, and (o) To perform other functions necessary to fulfill the objectives of this Act. (2) The Council may delegate some of the powers vested in it under this Act to any Member, Secretary, Committee or member of a committee. 9. Appointment of Secretary: (1) There shall be a Secretary as the administrative head of the office of the Council. (2) The Council shall appoint a person who has at least a bachelor's degree in law to the post of Secretary, or, upon the request of the Council, His Majesty's Government shall depute an employee up to the gazetted class. (3) Except as provided in this Act, other functions, duties and powers of the Secretary shall be as prescribed. (4) The remuneration, facilities and conditions of service of the Secretary shall be as prescribed. (5) In the absence of the Secretary, the Council may appoint any employee to act as Secretary. 10.

Fund of the Council: (1) The Council shall have a separate fund. (2) The amounts received from grants from the Government of Nepal, any person or institution, and from other fees collected by the Council, etc. shall be deposited in the fund of the Council. (3) The fund of the Council shall be operated by the joint signature of the

Member designated by the Council and the employee of the Council designated by the Council. (4) The auditor designated by the Council shall audit the accounts of the Council every year. 11. Disciplinary Committee: (1) If a complaint is lodged with the Council or information is received that any legal practitioner has done any act against this Act or the rules or code of conduct made under this Act, the Council may constitute a Disciplinary Committee with a Member as Chairperson to investigate the matter and take necessary action. (2) The Disciplinary Committee shall have the same powers as a court with respect to issuing summons and taking evidence. (3) The Disciplinary Committee may render a decision to do the following to a legal practitioner found guilty: (a) To give a warning, (b) To prohibit from practicing law for a certain period, and (c) To cancel the certificate of the legal practitioner. (4) While taking action under sub-section (3), the concerned legal practitioner shall be given a reasonable opportunity to present a defense. (5) A legal practitioner who is not satisfied with the decision of the Disciplinary Committee may appeal to the Supreme Court within thirty-five days from the date of receipt of the notice of the decision. 12. Committees: (1) The Council may, for the conduct of its business, constitute other committees as necessary in addition to the Disciplinary Committee and the Examination Committee. (2) The procedure, functions, duties and powers of the committee constituted under sub-section (1) shall be as prescribed by the Council. 13. Proceedings not to be Invalid: Even if the seat of any Member remains vacant, or an ineligible person is present, or proceedings are conducted in the Council, the proceedings of the Council shall not be invalid only on that ground. 14. No Legal Action to be Instituted: No complaint may be lodged against any action taken in good faith by the Council or a Member or any committee of the Council or any member of a committee in accordance with this Act or the rules made under this Act. Chapter-3 Legal Practitioner Examination 15. Legal Practitioner Examination: (1) The Council shall conduct the legal practitioner's examination at least once a year.

Such examination shall be taken in writing and orally, and the weightage of the oral examination shall not exceed ten percent of the total marks. (2) For the purpose of sub-section (1), the Council shall constitute a Legal Practitioner Examination Committee including relevant experts. The Council shall designate one of the members of the Committee as Chairperson. (3) The Examination Committee may make necessary arrangements for conducting the examination. (4) The Examination Committee shall determine its own procedure. 16. Curriculum Relating to Legal Practitioner Examination: (1) The Council shall determine the curriculum, level and system of the legal practitioner's examination. Provided that, in relation to the persons mentioned in clauses (a) and (b) of sub-section (1) of section 17, the curriculum for the legal practitioner's examination to be taken shall be determined separately as prescribed by the Council, taking into account the background of their experience. (2) The Council may seek advice and assistance from the Supreme Court and the Faculty of Law, Tribhuvan University in determining the curriculum, level and system of the legal practitioner's examination and in conducting the examination. Chapter-4 Registration as a Legal Practitioner 17. Persons to be Registered as a Legal Practitioner: (1) Only a Nepali citizen who has passed the legal practitioner's examination and has not been punished for a criminal offense involving moral turpitude and who possesses the following qualifications shall be registered as an Advocate: (a) Has obtained a bachelor's degree in law and has served as a judge, government attorney, or in a gazetted post in the judicial service, or as a law teacher for at least five years, or Amended by the Act to Amend Some Nepal Acts, 2064 (2007). (b) Has practiced law continuously as an Advocate for at least five years and has obtained a bachelor's degree in law, or Amended by the Act to Amend Some Nepal Acts, 2064 (2007). (c) Has practiced law continuously as an Advocate for seven years, or (d) Has obtained a bachelor's degree in law. (2) A Nepali citizen who possesses the following qualifications, has passed the legal practitioner's examination, and has not been punished for a criminal offense involving moral turpitude shall be registered as an Advocate Amended by the

First Amendment.until the end of Chaitra 2070 B.S.: (a) Has obtained a proficiency certificate in law, or (b) Has practiced law as an Agent for five years. 18.

Application for Registration: (1) A person who is qualified to be registered as an Advocate under this Act may submit an application to the Council in the format prescribed by the Council for registration as a legal practitioner. (2) If the person applying under sub-section (1) appears to be qualified to be registered as a legal practitioner, the Council shall register such Nepali citizen as a legal practitioner and issue a certificate of legal practitioner in the format as prescribed, and shall also give information thereof to the Supreme Court.

19. Cancellation of Certificate: If it is subsequently proven that a legal practitioner was already ineligible to be a legal practitioner prior to obtaining the certificate of legal practice, the Council may cancel the certificate of such legal practitioner. 20. To Maintain Register of Legal Practitioners: (1) The Council shall maintain a register of persons who have obtained the certificate of legal practitioner. (2) The register under sub-section

(1) shall be kept updated by the Council. (3) If any legal practitioner dies, or if any legal practitioner submits an application to have his/her name removed from the register, or if any legal practitioner is subject to disciplinary action resulting in a decision to cancel the certificate, the name of such legal practitioner shall be removed from the register, and information thereof shall be given to the Supreme Court. (4) If any legal practitioner is subject to disciplinary action resulting in a decision by the Council to suspend his/her certificate, that fact shall be noted in the register. 21. Title of Senior Advocate: (1) If the Supreme Court considers that any Advocate has practiced law in the Supreme Court or a court of appeal level for at least fifteen years, maintaining high standards of the profession and assisting the court and society, the Supreme Court may confer upon such Advocate the title of Senior Advocate as an honor, and such Senior Advocate shall observe the conduct as prescribed. (2) When the Supreme Court confers the title of Senior Advocate upon any Advocate under sub-section (1), the consent of the concerned Advocate shall be obtained. Chapter

5 Right to Practice Law 22.

Right to Appear, Plead and Argue: (1) A Senior Advocate and an Advocate shall have the right to appear, plead and argue on behalf of their party before any office, court or authority in Nepal, including the Supreme Court Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009).. (2) An Advocate shall have the right to appear, plead and argue on behalf of their party before other offices, courts or authorities in Nepal, other than the Supreme Court Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009).. 23. Right of Address: (1) If there is more than one legal practitioner on behalf of a party in any case, the right to address the authority hearing the case shall be according to the following order of priority:- (a) If legal practitioners are of the same category, according to the order of seniority based on the date of obtaining the certificate, and (b) If legal practitioners are of different categories, according to the following order: (1) Senior Advocate, (2) Advocate, and (3) Advocate. (2)

Notwithstanding anything contained in sub-section (1), with the permission of the authority hearing the case and the legal practitioner entitled to address first in the order of priority, a legal practitioner having the right to address later in the order of priority may address first. (3) If, in any case, there are more than one legal practitioner of the same category on behalf of the same party who obtained their certificates on the same date, any one legal practitioner mutually agreed upon may address first. 24. Special Privileges of a Legal Practitioner: (1) While a legal practitioner is going to appear, plead or argue on behalf of any party in any case, he/she shall not be arrested on the way in relation to any civil claim or penalty. (2) No action for defamation or insult shall be initiated against a legal practitioner for anything spoken by him/her in the course of argument. 25.

Unauthorized Person not to Practice Law: (1) No person who is not a legal practitioner shall appear, plead or

argue in any office or court on behalf of any party in any case. (2) Notwithstanding anything contained in sub-section (1), a legal practitioner who has obtained a certificate of legal practice from a foreign country may, with the permission of the concerned court, appear and argue in court on behalf of any party in a particular case. (3) Notwithstanding anything contained in sub-section (1), in a district where the number of government attorneys, parties to the case, or those entitled to practice law according to law is less than ten, it shall not be prevented that any other person appears, pleads or argues in an office or court on behalf of any party to the case. (4) If any person does any act contrary to sub-section (1), he/she may be liable to a fine of up to two thousand rupees or imprisonment for up to six months, or both.

Chapter 6 Miscellaneous

26. Recognition of Existing Legal Practitioners: Legal practitioners registered as Senior Advocates, Advocates, or Agents under the Legal Practitioners Act, 2025 (1968) shall be deemed to have been registered as legal practitioners under this Act.

27. Power to Make Rules: (1) The Council may make rules to fulfill the objectives of this Act. (2) Without prejudice to the generality of the power conferred by sub-section (1), the Council may, in particular, make rules on the following matters: (a) Professional code of conduct for legal practitioners, (b) Hearing of complaints relating to the violation of the code of conduct and other procedures, (c) Internal procedures of the Council, (d) Procedures of various committees constituted under the Council, (e) Provisions for determining the question of disqualification of a Member, (f) Provisions relating to application fees for registration as a legal practitioner and certificate fees for registration, (g) Provisions relating to the appointment and service of employees of the Council, (h) Provisions relating to the fund, accounts and audit of the Council, (i) Provisions relating to the work that may be done by a person who has obtained a certificate to draft documents in offices and courts and the conditions to be observed. (3) Rules made by the Council under clauses (a), (b) and (i) of sub-section (1) shall come into effect only after approval by the Supreme Court.

28.